

25STCV19817 25STCV19817

County: los-angeles

Division: Civil Law and Motion

Department: 311

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Case Number: 25STCV19817 Hearing Date: August 3, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

25STCV19817

PAULETTA

PASKELL vs NISSAN NORTH AMERICA, INC.

August

3, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF'S MOTION TO COMPEL INITIAL DISCLOSURES AND REQUEST FOR MONETARY
SANCTIONS PURSUANT TO CALIFORNIA CODE OF CIVIL PROCEDURE § 871.26.

RULING:

The Court orders the Motion off calendar as moot, considering subsequent service of disclosures and documents, and finds good cause in opposition to sanctions.

I.

BACKGROUND

On June 30, 2025, PAULETTA PASKELL (Plaintiff) filed a Lemon Law Complaint against NISSAN NORTH AMERICA, INC. (Defendant), alleging Causes of Action under the Song-Beverly Consumer Warranty Act (Civ. Code §§ 1790-1795.8), along with a Fifth Cause of Action for Fraudulent Inducement - Concealment.

Plaintiff alleges purchasing, with warranty provisions, a 2023 Nissan Kicks that Defendant manufactured, which had defects, including AEB, transmission, engine, and electrical. Plaintiff further alleges that Defendant failed to repair the vehicle within a reasonable number of attempts and did not promptly replace it or make restitution.

On

April 23, 2026, Plaintiff filed the Motion to Compel Initial Disclosures pursuant to Code of Civil Procedure, section 871.26, and to obtain monetary sanctions (\$2,500.00).

Defendant filed an

Opposition, reporting statutory compliance, justifiable delay during settlement efforts, and requests exceeding the statutory scope.

II.

LEGAL STANDARD

Code of Civil Procedure

section 871.26 provides that, unless the party failing to comply with discovery requirements shows good cause, judges shall impose sanctions, including \$1,500.00 against a plaintiff's attorney, or \$2,500.00 against a defendant's attorney, to be paid within 15 business days, for the failure to comply with initial document production. (Code Civ. Proc., § 871.26, subd. (j)).

III.

ANALYSIS

Plaintiff seeks initial

Lemon Law disclosures and statutory sanctions, and identifies many areas of content that Defendant generally has access to, including searchable Electronically Stored Information (ESI).

Defendant responds that

(1) the parties justifiably agreed to temporarily suspend AB 1755 disclosure and production obligations while working towards settlement, (2) Defendant served disclosures and produced documents on July 20, 2026, and (3) the Motion seeks some documents beyond the scope of section 871.26.

The Court observes that

there is a dearth of law about section 871.26 and nothing governing about legislative interpretation as to the intended scope of the statute.

Legislative

interpretation begins by examination of the language of the statute, giving the words their ordinary meaning and considering them in the context of the statutory framework. (Barnes v. Dept. of Corrections (1999) 74 Cal.App.4th 126, 131.) Judges should not disregard express statutory language, or add language that is not there. (Yao v. Superior Court (2002) 104 Cal.App.4th 327, 333.) Only when statutory language is susceptible to more than one reasonable construction is it appropriate to consider extrinsic aids, including certain limited types of legislative history, to ascertain the meaning. (E.g., Esberg v. Union Oil Co. (2002) 28 Cal.4th 262, 269.) Issues of legislative interpretation involve pure questions of law that the reviewing courts independently review de novo, without any according any deference to the lower courts. (E.g., Wolf v. CDS Devco (2010) 185 Cal.App.4th 903, 913; Regents of Univ. of Cal. v. Superior Court (1999) 20 Cal.4th 509, 531.)

Other than initial

disclosures and limited depositions, “all other discovery shall be stayed until mediation is concluded.” (Code Civ. Proc., § 871.26, subd. (e).) According to legislative history, section 871.26 “would stay all discovery, except a limited set of disclosures....” (CA LEGIS 938 (2024), 2024 Cal. Legis. Serv. Ch. 938 (A.B. 1755) (WEST).) (Underscoring added.) Legislative history and the wording of the statute indicate a legislative intent to require much less disclosure than the great extent of information and searching for discovery responses that

plaintiffs sometimes seek as part of initial disclosures in Lemon Law cases.

Here, the Court does not order disclosure and production falling outside the scope of section 871.26, as to which the Discovery Act would serve as the prescribed procedure.

Further, the Court exercises discretion to order the matter off calendar, considering the disclosures and production occurring after the Motion's filing.

In denying sanctions, the Court finds that the Opposition shows good cause for failing to comply timely with the discovery requirements of section 871.26, based upon reasonable contentions about legislative interpretation and delay for mutual settlement efforts.

IV.

CONCLUSION

The Court order the Motion, off calendar, as moot, and denies sanctions based on Defendant's showing of good cause.